

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No. 43499-B of 2021

Mst. Ayesha Anwar

VS

The State and another

Sr. No. of order/ proceeding	Date of order/ proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.
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27.10.2021 Mr. Zaman Manzoor Dogar, Advocate along with the petitioner.
Hafiz Asghar Ali, DPG with Irshad, ASI.
Mr. Kamran Khan Niazi, Advocate for the complainant.

Through this petition, Ayesha Anwar, the petitioner, entreats pre-arrest bail in case FIR No.215/2021, dated 06.04.2021, under Sections 406, 380, 448, PPC, registered with Police Station Millat Park, Lahore.

2. According to the narration of crime report, the briefly allegations are that the petitioner and her husband Sohail had received Rs. 20,00,000/- against a portion of their house through a mortgage deed, thereafter, when the complainant was ready to shift her household articles, the petitioner and her husband seized household articles of the complainant and also forced the complainant to pay Rs. 20,00,000/- to them and kicked her off from the above said portion of their house. Hence, this case.

3. Heard. Record perused.

4. Perusal of record transpires that the time and date of occurrence is unknown whereas the FIR was recorded on 06.04.2021 without explaining any sufficient reasons for inordinate delay, therefore, chances of petitioner's false implication with deliberation after consultation cannot be

ruled out. Reliance can be placed upon on the cases of Khair Muhammad Vs. The State (2021 SCMR 130).

5. According to the prosecution, the allegation against the petitioner is that she by way of committing criminal breach of trust misappropriated the supra mentioned amount belonging to the complainant. It is evident from the perusal of record that the complainant herself admitted in the FIR that her paid amount of Rs. 20,00,000/- was returned by the petitioner and her ex-husband. In the attending circumstances, the alleged guilt of the petitioner is necessarily a matter of further inquiry. Volunteer entrustment of property is *sine qua none* to constitute an offence under section 406 PPC. At this stage, it will be expedient to reproduce the provisions of Section 405 PPC, as under:-

“Criminal breach of trust. Whoever, being in any manner entrusted with property or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly use or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or willfully suffers any other person so to do, commits “criminal breach of trust”.

Needless to say that in the absence of clear entrustment mere breach of promise, agreement or contract does not *ipso facto* attract the definition of criminal breach of trust in terms of section 405 PPC. I respectfully place reliance on the case of Shahid Imran versus The State and others (2011 SCMR 1614), wherein the Hon’ble Supreme Court of Pakistan, has observed as under:-

“Mere breach of a promise, agreement or contract does not ipso facto attract the definition of criminal breach of trust contained in Section 405, PPC and such a breach is not synonymous with criminal breach of trust

without there being a clear element of entrustment therein which entrustment has been violated.”

I also respectfully refer case of Ubedullah versus The State (2003 P Cr. L J 1921) and Haji Javed Iqbal versus The State (2004 Y L R 2288).

6. More so, principles for grant of pre-arrest bail, i.e. *mala fide* intention or ulterior motive of the police is concerned, it is not possible in every case to prove the same, however, these grounds can be gathered from the facts and circumstances of the case. Khalil Ahmed Soomro vs. The State (PLD 2017 S.C 730), the following principle has been enunciated:-

“Although for grant of pre-arrest bail one of the pre conditions is that the accused person has to show that his arrest is intended by the prosecution out of mala fide and for ulterior consideration. At pre-arrest bail stage, it is difficult to prove the element of mala fide by the accused through positive / solid evidence/materials and the same is to be deduced and inferred from the facts and circumstances of the case and if some events-hints to that effect are available, the same would validly constitute the element of mala fide.”

Reference can also be made to the case law reported as Shahzada Qaiser Arfat alias Qaiser vs. The State and another (PLD 2021 SC 708).

7. I have also noticed that civil litigation is pending adjudication between the parties as the petitioner has filed civil suits against respondent No. 2 (available at pages No. 26 and 42) and as a counterblast complainant has lodged the instant FIR in order to convert the civil liability into criminal

one just to harass, blackmail, humiliate and pressurize the petitioner to complete her nefarious designs, which exercise is not permitted under the law. In the eventuality of above, the culpability of the petitioner in offences under sections 380 and 448, PPC will better be determined by the learned trial court after recording and evaluating of evidence.

8. Although the petitioner has been found guilty during investigation but the fact remains that the *ipsi dixit* of police regarding guilt or innocence of accused could not be depended upon, as the same would be determined by trial court on the basis of evidence, yet to be collected. Guidance is sought from the case law reported as Maulana Abdul Aziz v. The State (2009 SCMR 1210).

9. The learned Deputy Prosecutor General has fervidly argued that the petitioner is involved in two other cases of similar nature, however, conceded that the petitioner has not been convicted so far. Mere registration of cases without conviction in any of them cannot be deemed sufficient to label a person as a dangerous or a habitual criminal entailing dismissal of petition. Reliance is placed on case of Jamal-ud-Din alias Zubair Khan Vs. The State (2012 SCMR 573).

10. Needless to mention here that object of pre-arrest bail is to save innocent persons from humiliation, harassment and incarceration on the basis of false implication. Guidance is sought from Meeran Bux V The State and another (PLD 1989 SC 347).

11. In view of all above, this petition is **accepted** and ad-interim pre-arrest bail already granted to the petitioner is hereby confirmed subject to her furnishing fresh bail bonds

in the sum of Rs.1,00,000/- (Rupees one lac only) with one surety in the like amount to the satisfaction of the learned trial court.

12. It is, however, clarified that observations made herein above are just tentative in nature and strictly confined to the disposal of this bail petition.

(Muhammad Tariq Nadeem)
Judge

Approved for reporting

Judge

Khurram*